

26VECV01203 26VECV01203

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-24

Motion: DEFENDANT BEHAVIORAL SYSTEMS SOUTHWEST, INC.'S DEMURRER AND MOTION TO STRIKE

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Case Number: 26VECV01203 Hearing Date: August 24, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA FOR THE COUNTY OF LOS ANGELES - NORTHWEST MICHAEL MOLINA, Plaintiff, vs. BEHAVIORAL SYSTEMS SOUTHWEST, INC. Defendant.

CASE NO: 26VECV01203

[TENTATIVE] ORDER RE: DEFENDANT BEHAVIORAL SYSTEMS SOUTHWEST, INC.'S DEMURRER AND MOTION TO STRIKE

Dept. U 8:30 a.m. August 24, 2026

A. BACKGROUND

This case arises from an injury suffered from an alleged breach of duty of care. Plaintiff Michael Molina ("Plaintiff") filed a complaint on February 27, 2026, against Defendant Behavioral Systems Southwest, Inc. ("Defendant"), alleging causes of action for general negligence, intentional tort, and violation of prisoner's federal civil rights. Plaintiff alleges Defendant breached its duty of care when Plaintiff was injured after slipping and falling when instructed by a floor manager to clean the top of a locker.

On June 15, 2026, Defendant filed the instant demurrer and motion to strike.

On August 11, 2026, Plaintiff filed a first amended complaint ("FAC").

B. RULING

Defendant Behavioral Systems Southwest's demurrer and motion to strike are made MOOT by Plaintiff Michael Molina's first amended complaint.

C. LEGAL STANDARD

A demurrer is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) When considering demurrers, courts assume the truth of the facts alleged in the pleading and read the allegations liberally and in context. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081.)

A demurrer for sufficiency attacks a pleading on the ground that it does not contain facts sufficient to state a cause of action. (Code Civ. Proc., § 430.10 (e); Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) Parties may also demur to causes of action individually. In either case, the procedure is also called a 'demurrer for sufficiency,' and it tests the pleading by itself, alone and disconnected from extraneous matters. (Hahn, at p. 747.)

D. DISCUSSION

Defendant demurs to Plaintiff's third cause of action for violation of prisoner's federal civil rights on the grounds the complaint fails to state facts sufficient to constitute a claim against Defendant. (Dem., p. 3.) Defendant further moves to strike portions of the complaint referencing punitive and exemplary damages. (Mot., p. 2.)

Plaintiff filed a first amended complaint on August 11, 2026. Accordingly, the instant demurrer and motion to strike are made moot by the subsequent filing of the FAC. "It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading." (State Compensation Ins. Fund v. Superior Court (2010) 184

Cal.App.4th 1124, 1130.) "Because there is but one complaint in a civil action...the filing of an amended complaint moots a motion directed to a prior complaint." (Id. at p. 1131.)

E. CONCLUSION

Based on the foregoing, Defendant Behavioral Systems Southwest's demurrer and motion to strike are made MOOT by Plaintiff Michael Molina's first amended complaint.

Plaintiff is ORDERED to give notice.

DATED: August 24, 2026

Lee S. Arian

Judge of the Superior Court